

24TRCV04415 24TRCV04415

County: los-angeles

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Case Number: 24TRCV04415 Hearing Date: September 15, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

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JOSEPH DEFRANCO, JR.

;

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO.,
INC.

;

Defendant.

Case

No.:

24TRCV04415

Hearing

Date:

September
15, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

american honda motor co., inc.'s motion for an undertaking

MOVING PARTY: Defendant, American Honda Motor.
Co., Inc.

RESPONDING

PARTY: Plaintiff, Joseph Defranco,
Jr.

(1)

Defendant

American Honda Motor. Co., Inc.'s Motion for an Undertaking is DENIED pursuant to Code of Civil Procedure
section 1030.

The Court considers the moving papers filed on April 23, 2026, the
opposition brief filed on July 10, 2026, and the reply brief filed on July 16,
2026.

BACKGROUND

Factual Background

On December 27, 2024, plaintiff Joseph Defranco, Jr. ("Plaintiff")
filed the Complaint against defendants American Honda Motor. Co., Inc.
("Defendant") and DOES 1 through 10. The
Complaint includes the following causes of action: (1) Violation of Subdivision

(d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of Express Written Warranty – Civ. Code, §§ 1791.2, Subd. (a), 1794; (5) Breach of the Implied Warranty of Merchantability (Civ. Code, §§ 1791.1, 1794); (6) Violation of the Magnuson-Moss Warranty Act; (7) Violation of Automotive Repair Act; and (8) Violation of Business and Professions Code § 17200.

LEGAL STANDARD

In an action or special proceeding brought by a nonresident plaintiff, the defendant may at any time move for an order requiring the plaintiff to post security. (Code Civ. Proc., § 1030, subd. (a).) The stated grounds for the motion are that the plaintiff resides out of state or is a foreign corporation, and there is a reasonable possibility that the moving defendant will obtain a favorable judgment. (Code Civ. Proc., § 1030, subd. (b).) The motion can be brought at any time. (Code Civ. Proc., § 1030, subd. (a).) The motion is required to be noticed. (Code Civ. Proc., § 1030, subd. (a).) The notice of motion must be served in accordance with Code of Civil Procedure section 1005, subdivision (b). The motion must be accompanied by a supporting affidavit or declaration that establishes the stated grounds for the motion and sets forth the nature and amount of the costs and attorney fees the defendant has incurred and expects to incur until the action is concluded. (Code Civ. Proc., § 1030, subd. (b).) A memorandum of points and authorities must also accompany it. (Code Civ. Proc., § 1030, subd. (b); Cal. Rules of Court, rule 313(a).)

The plaintiff may pursue a number of tactics in opposing a motion for security. These may include:

- (1) proof that the plaintiff is not a nonresident;
- (2) showing the plaintiff's indigency (Code Civ. Proc., §995.240); and
- (3) arguing the defendant's failure to make an adequate prima facie showing of a reasonable possibility of success in the action.

In cases where adequate grounds exist for granting the motion for security, the plaintiff can still challenge the amount of the costs and attorney fees requested by the defendant. The security can be ordered only for “reasonable” costs and attorney fees, and the defendant must be otherwise entitled to recover those fees by contract or by another statutory provision. (Code Civ. Proc., §1030, subd. (a).)

If the motion is granted, the plaintiff shall file the undertaking no later than 30 days after service of the court's order requiring it, and if plaintiff fails to file the undertaking within the time allowed, the plaintiff's action shall be dismissed as to the moving defendant. (Code Civ. Proc., § 1030, subd. (d).)

DISCUSSION

Defendant moves this Court for an undertaking in the amount of \$19,603.00, asserting that Plaintiff is a resident of New Jersey and that there is a reasonable possibility of Defendant securing a favorable judgment in this matter.

(Motion, pp. 4:2-10:19; Declaration of Jordan R. Fisher (“Fisher Decl.”), ¶ 3, Exh. C.) Plaintiff's residency is not disputed. Consequently, the Court will concentrate on the argument concerning the reasonable possibility of success.

Possibility of Obtaining a Favorable Judgment

“The motion shall be made on the grounds that the plaintiff resides out of the state or is a foreign corporation and that there is a reasonable possibility that the moving defendant will obtain judgment in the action or special proceeding.” (Code Civ. Proc., § 1030, subd. (b).) The Court finds that Defendant demonstrates that there is a reasonable possibility that it will achieve a favorable judgment in the action or special proceeding.

First to Fifth Causes of Action – Song-Beverly Consumer Warranty Act Claims

“[T]he structure and language of the existing statutory provisions indicate that the Legislature intended the

Act to apply only to vehicles sold in California.” (Cummins, Inc. v. Superior Court (2005) 36 Cal.4th 478, 493.)

Defendant submits evidence

demonstrating that Plaintiff purchased the vehicle in Denville, New Jersey, from Joyce Motors Corp., doing business as Joyce Honda (“Joyce Honda”). (Motion, p. 8:17-18; Declaration of Larry Swanson (“Swanson Decl.”), ¶¶ 2-6.) Larry

Swanson, who serves as the Vice President and General Manager of Joyce Honda,

asserts that Plaintiff purchased the vehicle on February 19, 2022. (Swanson Decl., ¶¶ 2, 4-5.) Plaintiff entered a “motor vehicle retail

order” contract with Joyce Honda to finance the vehicle’s purchase and

subsequently took possession of the vehicle from the dealership. (Swanson Decl., ¶¶ 5-6.) Consequently, Plaintiff is precluded from

bringing Song-Beverly claims against Defendant, and Defendant has established a reasonable possibility of prevailing on these claims.

However, Plaintiff contends

that “Defendant Honda is headquartered right here in Los Angeles County. See Declaration of Michael Devlin at ¶ 3, Ex.

1. Thus, the Subject Vehicle was

manufactured and/or distributed in this state.

Moreover, given that Defendant Honda’s Sales Headquarters is

unquestionably here in Los Angeles County, the vehicle’s initial sale was in

this state. Defendant manufacturers

certainly now point to the ‘initial delivery date’ as the date when they as a

manufacturer initially sold a vehicle to a dealership for the purposes of

starting the clock on the recently changed more limited statute of limitations

in Song-Beverly Consumer Warranty cases; they should not be able to have it

both ways and then say that’s not what they mean when such initial sale doesn’t

suit their liking and the shoe is on the other foot.” (Opp., p. 2:10-18.)

Here, the threshold question is

not whether the subject vehicle was manufactured or distributed in California,

but rather whether it was sold in California.

The evidence conclusively demonstrates that it was not sold in

California. Furthermore, the mere fact

that Honda’s headquarters is situated in Los Angeles County does not imply that

the subject vehicle was manufactured or distributed in California. Plaintiff has not presented a legal analysis

or any evidence to support this assertion.

Furthermore, Plaintiff’s

argument concerning the “the initial delivery date” is unpersuasive. Plaintiff fails to provide relevant case law to substantiate their claims and does not clarify why the unknown cases should be interpreted to suggest that a vehicle sold in New Jersey was initially sold in California.

Seventh Cause of Action - Violation of Automotive Repair Act

“The director, if the automotive repair dealer cannot show there was a bona fide error, may deny, suspend, revoke, or place on probation the registration of an automotive repair dealer for any of the following acts or omissions related to the conduct of the business of the automotive repair dealer, which are done by the automotive repair dealer or any automotive technician, employee, partner, officer, or member of the automotive repair dealer: ... ¶

(2) Causing or allowing a customer to sign any work order that does not state the repairs requested by the customer or the automobile's odometer reading at the time of repair.” (Bus. & Prof. Code, § 9884.7, subd. (a)(2).)

The term “director” refers specifically to “the Director of Consumer Affairs.” (Bus. & Prof. Code, § 9880.1, subd. (g).) Furthermore, “[e]very power granted to or duty imposed upon the director under this chapter may be exercised or performed in the name of the director by a deputy or assistant director or by the chief, subject to such conditions and limitations as the director may prescribe.” (Bus. & Prof. Code, § 9880.1, subd. (g).) Consequently, only the Director of Consumer Affairs, a deputy, assistant director, or chief may pursue violations of Business and Professions Code section 9884.7, subdivision (a)(2).

Plaintiff asserts that they are bringing a claim under Business and Professions Code section 9884.7, subdivision (a)(2). (Compl., ¶ 44.) However, Plaintiff lacks the requisite authority to do so, as they do not assert being the Director of Consumer Affairs, a deputy, assistant director, or chief. Consequently, Plaintiff is precluded from bringing this claim against Defendant, and Defendant has established a reasonable possibility of prevailing on this claim.

Eighth Cause of Action - Violation of Business and Professions Code § 17200

“[P]laintiffs who are not California residents must also allege facts to show that the alleged violations occurred within California, because California’s unfair competition law does not apply extraterritorially.” (Aghaji v. Bank of America, N.A. (2016) 247 Cal.App.4th 1110, 1119.)

As previously discussed, Plaintiff is a resident of New Jersey and purchased the vehicle in that state. Additionally, Plaintiff’s evidence indicates that the vehicle was taken to Joyce Honda for repairs on multiple occasions. (Declaration of Michael Devlin, Exh. C.) None of the facts presented substantiate that the alleged violations occurred in California. Consequently, Plaintiff is precluded from bringing this claim against Defendant, and Defendant has established a reasonable possibility of prevailing on this claim.

Accordingly, Defendant demonstrates that there is a reasonable possibility that it will achieve a favorable judgment in the action or special proceeding.

Sixth Cause of Action - Violation of the Magnuson-Moss Warranty Act

“The Magnuson-Moss Warranty—Federal Trade Commission Improvement Act (Magnuson–Moss), 15 U.S.C. sections 2301 et seq., authorizes a civil suit by a consumer to enforce the terms of an implied or express warranty. Magnuson–Moss ‘calls for the application of state written and implied warranty law, not the creation of additional federal law,’ except in specific instances in which it expressly prescribes a regulating rule. (Walsh v. Ford Motor Co. (D.C.Cir.1986) 807 F.2d 1000, 1012 (Walsh II).) Accordingly, the trial court correctly concluded that failure to state a warranty claim under state law necessarily constituted a failure to state a claim under Magnuson–Moss.” (Daughtery v. American Honda Motor Co. Inc. (2006) 144 Cal.App.4th 824, 832-833.) Therefore, while a Magnuson-Moss claim may stand or fall with express and implied warranty claims under state law, it may still survive if the plaintiff invokes a regulatory rule under Magnuson–Moss, as demonstrated in this case.

This interpretation is

supported by *Clemens v. DaimlerChrysler Corp.* (2008) 534 F.3d 1017, 1022, fn.3. “15 U.S.C. § 2310(d) provides that ‘a consumer who is damaged by the failure of a supplier, warrantor, or service contractor to comply with any obligation under this chapter, or under a written warranty, implied warranty, or service contract, may bring suit for damages and other legal and equitable relief....’ *Clemens* alleges a violation of the Act only insofar as DaimlerChrysler may have breached its warranties under state law; there is no allegation that DaimlerChrysler otherwise failed to comply with the Magnuson–Moss Act. Therefore, the federal claims hinge on the state law warranty claims. See *Schimmer v. Jaguar Cars, Inc.*, 384 F.3d 402, 405 (7th Cir.2004) (noting that the Magnuson–Moss Act borrows state law causes of action).” (*Ibid.*, emphasis added.)

Here, Plaintiff’s complaint indicates that: “In addition to the express warranty, in connection with the sale of the vehicle to Plaintiff, an implied warranty of merchantability was created under California law. The vehicle’s implied warranties were not disclaimed using a Buyer’s Guide displayed on the vehicle; thus, any purported disclaimers were ineffective pursuant to 15 U.S.C. § 2308(c).” (Compl., ¶ 34.) “Defendant violated the Mag-Moss Act when it breached the express warranty and implied warranties by failing to repair the defects and nonconformities, or to replace the vehicle.” (Compl., ¶ 35.) This indicates that Plaintiff is making a specific claim against Defendant for violating 15 U.S.C. § 2308, subdivision (c).

According to 15 U.S.C. § 2308, subdivision (a), “No supplier may disclaim or modify (except as provided in subsection (b)) any implied warranty to a consumer with respect to such consumer product if (1) such supplier makes any written warranty to the consumer with respect to such consumer product, or (2) at the time of sale, or within 90 days thereafter, such supplier enters into a service contract with the consumer which applies to such consumer product.” Additionally, 15 U.S.C. § 2308, subdivision (c) states, “A disclaimer, modification, or limitation made in violation of this section shall be ineffective for purposes of this chapter and State law.”

Since Defendant does not assert that Plaintiff lacks a claim under this statute, and the Court will not

make this claim on Defendant's behalf, the Court cannot conclude that Plaintiff is precluded from bringing their Magnuson-Moss claim against Defendant.

Consequently, Defendant has not established a reasonable possibility of prevailing on this claim. "To satisfy the requirements of section 1030, the Defendant must demonstrate a reasonable possibility of success on each of Plaintiff's claims. *Brightwell v.*

McMillan Law Firm, No. 16-CV-1696 W (NLS), 2017 WL 6944415, at *2 (S.D. Cal. May 12, 2017) (citing *Gabriel Techs. Corp. v. Qualcomm Inc.*, No. 08 CV 1992 MMA POR, 2010 WL 3718848, at *5 (S.D. Cal. Sept. 20, 2010)). '[I]f Defendants do not show a reasonable possibility of defeating even one of Plaintiff's claims, the Court must deny the motion.' *Id.*" (*Johnson v. Altamirano* (S.D. Cal. 2019) 418 F.Supp.3d 530, 564.)

Accordingly, the Court DENIES Defendant's motion for an undertaking, as Defendant failed to demonstrate a reasonable possibility of defeating Plaintiff's sixth cause of action for violation of the Magnuson-Moss Warranty Act

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ORDERS

1) Defendant

American Honda Motor. Co., Inc.'s Motion for an Undertaking is DENIED.

2) Defendant

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 15, 2026

Tamara

Hall

Judge
of the Superior Court